

(37)

Tentative Ruling

Re: **O'Neil v. Warren**
Superior Court Case No. 22CECG00003

Hearing Date: August 4, 2026 (Dept. 503)

Motion: By Plaintiffs to Set Aside February 10, 2026 Order

Tentative Ruling:

To take the matter off calendar. (Code Civ. Proc., § 581.)

Explanation:

Plaintiffs seek an order setting aside the court's February 10, 2026 order. On February 10, 2026 the court issued a minute order taking plaintiffs' motion to cancel a deed off calendar. Notably, the February 10, 2026 order was not a dismissal of the matter.

In fact the entire action was dismissed, without prejudice, on January 29, 2026 when the parties failed to appear following the issuance of an Order to Show Cause on September 17, 2025. As this matter has been dismissed and plaintiffs have not sought or obtained an order setting aside the dismissal on January 29, 2026, the court lacks jurisdiction to hear this motion. Additionally, plaintiffs do not address their failure to appear at the Order to Show Cause hearing heard January 29, 2026.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 7/31/2026.
(Judge's initials) (Date)

(37)

Tentative Ruling

Re: ***Ortiz v. M Xpress Inc.***
Superior Court Case No. 24CECG04233

Hearing Date: August 4, 2026 (Dept. 503)

Motion: By Defendants M Xpress, Inc. and Narinder Singh for
Determination of Good Faith Settlement

Tentative Ruling:

To grant. (Code Civil Proc., § 877.6.)

Explanation:

Under Code of Civil Procedure, section 877.6, a settlement entered by one or more of several joint tortfeasors may be determined by the court to be in "good faith." The court determines whether a settlement is within the "good faith ballpark" by considering the following factors (evaluated as of the time of the settlement): 1) a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability; 2) the amount paid in settlement; 3) a recognition that a settlor should pay less in settlement than if found liable after a trial; 4) the allocation of the settlement proceeds among plaintiffs; 5) the settlor's financial condition and insurance policy limits, if any; and 6) evidence of any collusion, fraud, or tortious conduct between the settlor and the plaintiffs aimed at making the nonsettling parties pay more than their fair share. (*Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488, 499; *Oldham v. California Capital Fund, Inc.* (2003) 109 Cal.App.4th 421, 432 ["In other words, the superior court must understand the size of the settlement pie, how the pie is sliced, and who is getting which slice."].)

A determination that the settlement was made in good faith bars any other joint tortfeasor or co-obligor from further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault. (Code Civ. Proc. § 877.6, subd. (c).)

All parties required to be noticed have been given notice of this motion and no one has filed an opposition or objected to the settlement. The settlement between defendants M Xpress, Inc. and Narinder Singh on one hand, and plaintiff Henry Mendoza Ortiz (erroneously named as Henry Mendoza Ortiz) on the other, is found and determined to be in good faith as set forth in Code of Civil Procedure § 877.6. (*Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488, 499.)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 7/31/2026.
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